IN THE YORK COUNTY COURT AND FAMILY COURT

Claim No:

Daniel Mercer CLAIMANT

– and –

Ivy Carleton DEFENDANT

Witness Statement of Daniel Mercer

I, **Daniel Mercer**, of **27 Rowan Avenue Leeds LS8 2PF**, will say as follows:

1 Introduction

I am the landlord of the property at 16 Willow Mews, York, YO24 3HX. I make this witness statement in support of my claim for possession under section 8 of the Housing Act 1988.

2 Tenancy History

The tenancy commenced on 1 January 2024 as an assured tenancy (granted for a fixed term). The agreed rent is £1,200.00 payable monthly, due on the 1st of each month. The tenant is contractually obligated to pay rent on or before the due date in accordance with the tenancy agreement.

3 Rent Arrears

The tenant has failed to pay rent as required under the terms of the tenancy agreement. As at the date of this statement, the total arrears amount to £3,600.00. This represents 3 complete rental periods during which no payment, or insufficient payment, has been received. A detailed Schedule of Arrears (Exhibit DM1) is attached to this pack, showing the period-by-period breakdown of rent due, payments received, and the running balance of arrears.

4 Grounds for Possession

I am seeking possession of the property relying on Ground 8 and Ground 10 of Schedule 2 to the Housing Act 1988. Ground 8 is a mandatory ground for possession. Ground 8 requires that at least 3 months' rent be unpaid both at the date of the notice and at the date of the hearing. At the date of service of the Form 3A notice (30 April 2026), the total rent arrears stood at £3,600.00, representing approximately 3.0 months' rent. This significantly exceeds the Ground 8 threshold of 3 months' rent (£3,600.00). As at the date of this statement (30 April 2026), the total rent arrears amount to £3,600.00, representing approximately 3.0 months of unpaid rent. A detailed Schedule of Arrears (Exhibit DM1) showing the period-by-period breakdown of rent due and payments received is attached to this pack. I will provide an updated Schedule of Arrears to the court before the hearing to confirm the arrears position at that date. Ground 10 is a discretionary ground which applies where some rent is unpaid both at the date of the notice and at the date of proceedings. The court has discretion to make a possession order if it considers it reasonable to do so.

5 Timeline of Events

- 1 January 2024: Tenancy began
- 1 January 2026: The first unpaid rent period began
- 30 April 2026: The Form 3A notice was served by post
- 28 May 2026: The notice period expired

6 Defendant Circumstances

The claimant is not aware of any further information about the defendant's circumstances beyond the matters set out in the claim papers and any information the defendant may wish to place before the court.

7 Supporting Evidence

I rely on the following exhibits and supporting documents in support of this claim.

Court forms

- Form N5 - Claim for Possession of Property
- Form N119 - Particulars of Claim for Possession

Witness exhibits

- Exhibit DM1: Schedule of Arrears - Period-by-period breakdown of rent due, payments received, and running balance.
- Exhibit DM2: Form 3A Notice - Form 3A notice served on the tenant.
- Exhibit DM3: Certificate of Service (Form N215) - Completed Form N215 certificate of service showing how the Form 3A notice was served.

Documents that may be provided separately to the court

- Tenancy agreement (original signed agreement)
- Bank statements or rent ledger (showing payment history)
- Correspondence with tenant regarding arrears
- Tenancy deposit protection certificate
- Gas Safety Certificate (if applicable)
- Energy Performance Certificate (EPC)

8 Conclusion

For those reasons, I ask the court to make the possession order sought and, if the court thinks fit, to enter judgment for the arrears and costs claimed.

Statement of Truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Daniel Mercer

Dated: _____

Important Notes

1. This witness statement must be signed and dated before submission to court.
2. You may be called to give oral evidence at a hearing. Ensure all facts stated are true and accurate.
3. If you are represented by a solicitor, they will verify this statement.
4. Keep a copy for your records and bring the original to any court hearing.
5. Do not alter this statement after signing. If you need to make changes, create a supplemental witness statement.